

1 ENGROSSED SENATE
2 BILL NO. 1163

By: Hall and Haste of the
Senate

3 and

4 Caldwell (Trey) and Kane of
5 the House

6
7 An Act relating to the Department of Human Services;
8 making an appropriation; stating purpose; requiring
9 that certain funds be utilized for certain purpose;
10 requiring certain funding be maintained at certain
11 levels; requiring certain joint approval prior to
12 certain actions; requiring certain transfers to
13 certain funds; appropriating certain federal funds
14 for certain program; authorizing early allocation of
15 funds under certain conditions; authorizing certain
16 transfers; requiring the maintenance of certain
17 records; providing budgeting and expenditure
18 limitations and procedures; requiring and prohibiting
19 certain budget procedures; providing an effective
20 date; and declaring an emergency.

21
22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. There is hereby appropriated to the Department of
24 Human Services from any monies not otherwise appropriated from the
General Revenue Fund of the State Treasury for the fiscal year
ending June 30, 2027, the sum of Two Hundred Seventy-two Thousand
Dollars (\$272,000.00) or so much thereof as may be necessary to
carry out the provisions of Enrolled Senate Bill No. 1847 of the 2nd
Session of the 60th Oklahoma Legislature.

1 SECTION 2. From the funds appropriated to the Department of
2 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
3 of the 60th Oklahoma Legislature, the sum of Seven Million Seven
4 Hundred Twenty-nine Thousand One Hundred Ninety-seven Dollars
5 (\$7,729,197.00) shall be used to replace funding no longer available
6 due to the reduction of federal matching dollars.

7 SECTION 3. From the funds appropriated to the Department of
8 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
9 of the 60th Oklahoma Legislature, the Department shall maintain the
10 funding levels for senior nutrition programs from the fiscal year
11 ending June 30, 2026. The Oklahoma Legislature requires joint
12 approval from the President Pro Tempore of the Oklahoma State Senate
13 and the Speaker of the Oklahoma House of Representatives before any
14 senior nutrition sites may be closed due to declining attendance or
15 increased operational costs during the fiscal year ending June 30,
16 2027.

17 SECTION 4. In addition to the funding required in Section 3 of
18 this act, from the funds appropriated to the Department of Human
19 Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the
20 60th Oklahoma Legislature, the sum of Two Million Five Hundred
21 Thousand Dollars (\$2,500,000.00) shall be used to maintain the
22 permanent second meal per day for the ADvantage Waiver Program.

23 SECTION 5. From the funds appropriated to the Department of
24 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session

1 of the 60th Oklahoma Legislature, the sum of Five Million Dollars
2 (\$5,000,000.00) shall be used to carry out the provisions of
3 Enrolled Senate Bill No. 1806 of the 2nd Session of the 60th
4 Oklahoma Legislature.

5 SECTION 6. From the funds appropriated to the Department of
6 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
7 of the 60th Oklahoma Legislature, the sum of Two Hundred Fifty
8 Thousand Dollars (\$250,000.00) shall be used to carry out the
9 provisions of Enrolled Senate Bill No. 1377 of the 2nd Session of
10 the 60th Oklahoma Legislature.

11 SECTION 7. From the funds appropriated to the Department of
12 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
13 of the 60th Oklahoma Legislature, the sum of Four Million Five
14 Hundred Sixty Thousand Dollars (\$4,560,000.00) shall be used to
15 carry out the provisions of Enrolled House Bill No. 2778 of the 1st
16 Session of the 60th Oklahoma Legislature.

17 SECTION 8. From the funds appropriated to the Department of
18 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
19 of the 60th Oklahoma Legislature, the sum of Twenty-five Million
20 Five Hundred Seventy-five Thousand Dollars (\$25,575,000.00) shall be
21 used to provide additional state funding for the administration of
22 the Supplemental Nutrition Assistance Program.

23 SECTION 9. From the funds appropriated to the Department of
24 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session

1 of the 60th Oklahoma Legislature, the Department is authorized to
2 transfer the sum of Three Million Dollars (\$3,000,000.00) to the 2-
3 1-1 Hotline Revolving Fund, created in Enrolled Senate Bill No. 1290
4 of the 2nd Session of the 60th Oklahoma Legislature.

5 SECTION 10. From the funds appropriated to the Department of
6 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
7 of the 60th Oklahoma Legislature, the sum of Thirty-eight Million
8 Nine Hundred Ninety-three Thousand Seven Hundred Sixty-one Dollars
9 (\$38,993,761.00) shall be used to provide additional state funding
10 for the ADvantage waivers.

11 SECTION 11. From the funds appropriated to the Department of
12 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
13 of the 60th Oklahoma Legislature, the Department shall maintain the
14 funding levels for provider rates and service authorizations for the
15 Community, Homeward Bound, In-Home Supports for Adults, In-Home
16 Supports for Children, and ADvantage waivers from the fiscal year
17 ending June 30, 2026.

18 SECTION 12. From the funds appropriated to the Department of
19 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
20 of the 60th Oklahoma Legislature for the support of the
21 Developmental Disability Services Division, in addition to services
22 provided in the fiscal year ending June 30, 2026, the agency may
23 also budget for and expend funds for family and self-advocate
24 onboarding meetings and services, professional development for case

1 management and providers, expansion of crisis services, and
2 enhancements to intake processes for the purpose of ensuring a
3 stronger, more responsive service delivery system for Oklahomans
4 with developmental disabilities.

5 SECTION 13. From the funds authorized to be transferred to the
6 Developmental Disability Services Revolving Fund in Enrolled Senate
7 Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature,
8 no funds may be expended for administrative services, targeted case
9 management, Medicaid match for any ICF/IID services or other non-
10 Medicaid match services not described in Section 11 of this act.

11 SECTION 14. From the funds appropriated to the Department of
12 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
13 of the 60th Oklahoma Legislature, the Department of Human Services
14 shall transfer Five Million Six Hundred Thousand Dollars
15 (\$5,600,000.00) to the credit of the Child Abuse Multidisciplinary
16 Account established in Section 1-9-103 of Title 10A of the Oklahoma
17 Statutes, which shall be distributed according to Section 1-9-104 of
18 Title 10A of the Oklahoma Statutes.

19 SECTION 15. There is hereby appropriated to the Department of
20 Human Services all federal monies received by the state during the
21 fiscal year ending June 30, 2027, from the Temporary Assistance for
22 Needy Families Block Grant and the Child Care and Development Block
23 Grant to meet the provisions of federal law relating to such grants.

1 SECTION 16. The Director of Human Services may request through
2 the Director of the Office of Management and Enterprise Services the
3 early transfer by the Oklahoma Tax Commission of tax collections to
4 the General Revenue Fund for the purpose of early allocation to the
5 Department of Human Services disbursing funds to alleviate cash flow
6 problems.

7 SECTION 17. A. The Director of the Office of Management and
8 Enterprise Services shall transfer monies appropriated from the
9 General Revenue Fund to the Department of Human Services disbursing
10 funds in the amounts and ratios requested by the agency except that
11 the cumulative amount transferred shall not exceed the cumulative
12 amount of equal monthly allotments of the appropriations from the
13 General Revenue Fund.

14 B. Monies appropriated or collected for the fiscal year ending
15 June 30, 2027, may be transferred to these disbursing funds for the
16 fiscal year ending June 30, 2026, to satisfy encumbrances and
17 obligations of the fiscal year, provided that monies equal in amount
18 are transferred from appropriations or collections for the fiscal
19 year ending June 30, 2026, to the disbursing funds for the fiscal
20 year ending June 30, 2027, to satisfy encumbrances and obligations
21 of the fiscal year. All transfer requests shall be in writing to
22 the Director of the Office of Management and Enterprise Services.

23 C. The Department of Human Services shall maintain records of
24 such inter-year transfers.

1 SECTION 18. The Director of Human Services may request the
2 Director of the Office of Management and Enterprise Services to
3 transfer monies between the Department of Human Services Support
4 Service Providers Grant Program Fund and the Human Services
5 Disbursing Fund or the Human Services Medical and Assistance Fund,
6 as needed for the expenditure of funds.

7 SECTION 19. This act shall become effective July 1, 2026.

8 SECTION 20. It being immediately necessary for the preservation
9 of the public peace, health, or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 Passed the Senate the 14th day of April, 2026.

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Presiding Officer of the Senate

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16 Passed the House of Representatives the ____ day of _____,
17 2026.

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Presiding Officer of the House
of Representatives

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